

Usability Study | Practitioner Case Form

Baltimore, MD / Washington, DC / Remote
April 2019

Study Information

In this study, Flexion UX Designers interviewed current practitioners to understand their use of the existing Tax Court system. The Flexion UX Team then tested the new Case Form with the practitioners, as well as the file document functionality for the first time.

To date, the Case Form had only been tested in an early iteration with general public users.

Participants

- 5 participants
- Practicing attorneys, with tax court experience from 8 to 40 + years
- Clients ranging from low-income petitioners to multi-million dollar corporations

Sessions

- 2 in-person sessions
- 3 video conferencing sessions

Summary of Key Findings: Deep Dive

Filing Petitions

- “This is going to be a great thing to file our petitions electronically!”
- The redundancy of the petition document upload and online form may be confusing during the initial launch

Managing Cases

- Most case tracking is done outside of the system by internal processes
- Participants are not relying on the Tax Court’s system to track their cases, other than viewing new filings

Notifications

- Email notifications for new filings is working, but participants need more information in emails to identify the case and document and a link directly into the system

Filing Documents

- Overall, participants did not have major complaints about the current filing process
- Participants would not use a mobile device to file a document, even on a mobile-friendly site-
“Doesn’t want to mess it up”

Summary of Key Findings: Case Form

Are the form instructions clear?

- Participants understood form instructions to combine Petition and IRS Notice
- Messaging around redaction is important (even for attorneys) and could be emphasized throughout

Is the flow of the form logical?

- Participants had no issues understanding the organization of the form
- Some participants felt that the form included redundant information from the Petition form they were uploading

Are users able to select the appropriate party type?

- Participants were able to locate the desired party type, after some attempts and clicking around
- Participants did not always know where to find the desired party type within the presented options

Are users able to select the appropriate case type?

- Participants were able to locate the desired case type

Summary of Key Findings: Case Form

How would you expect to access case information after it has been submitted?

- Participants understood how to locate their active cases on their dashboard
- Participants were able to access cases by clicking on the docket number with no issues

Are users able to access and submit information on a mobile device?

- Participant could easily navigate the docket record on mobile
- Participant was able to access specific documents on mobile, and understood the information presented

Recommendations: Case Form

Dashboard

- Emphasize “Start a Case” button and consider updating language to “File Petition”

Petition Upload

- Add reminder to redact information on the IRS notice to the helper text

Party Information

- Consider adding guidance to party options to make it clear there are additional choices in each category
- Consider redefining the required contact fields (telephone, email), especially when the petitioner is represented by counsel

Recommendations: Case Form

Case Type

- Update language to account for cases that are not initiated by a “notice” (specifically Declaratory Judgment)
- Update Notice Date field to optional

Submission Instructions

- Add clarification that redaction does not apply to the STIN document
- Soften language for these instructions; update to “Reminders”

Review Case Form

- Add PDF preview option before submission
- Add a review screen to view all entered information before submission

Recommendations: File Document

Document Type Selections

- Make the typeahead search for document type available to practitioners
- Revise the “browse” document type presentation and flow
- Revisit the flow of the document selection

Inclusions

- Add helper text language for the different types of inclusions, with examples (specifically Attachments)

Filing Parties

- Revise options to clarify that counsel is filing on behalf of the petitioner and not themselves
- Consider removing the “Counsel” option unless the document type is Motion to Withdraw

Review and Submission

- Add PDF preview feature before document submission

Recommendations: Other

Case Management

- Maintain visibility into closed cases; consider capping access to closed cases after 5 years
- Define and display an external-facing case status (may be a subset of internal statuses, or mapped to specific internal statuses)
- Display pending due dates for active cases (for example, due date for pre-trial memorandum 14 days before trial date)

Service Emails

- Consider including case caption and document title in the service notifications (if privacy laws allow)

Dashboard

- Display recent/new filings for active cases on the dashboard
- Display pending due dates for cases on dashboard

Recommendations: Other (Post-MVP)

Search

- Add ability to search by petitioner name (MVP) and attorney name (post-MVP)

Messaging

- Consider communication options between practitioners and judges (i.e. could practitioners be able to send a system message to a judge's inbox to request a conference call)

Account Management

- Consider a student access role to allow law students visibility into their cases without full rights
- Allow practitioners to add multiple service addresses for different client types

Questions | Come on, let us have 'em!

Appendix

Findings | Case Form Usability Test

Practitioner Dashboard

Start a Case button

- Start a Case button didn't stand out enough (1 participant)
- Unsure what "Start a Case" means (1 participant)
- Expects the "Start a Case" and "Enter a Case" to be of equal weight (two sides of the same coin) (1 participant)

My Cases

- Like that all their cases are easily available (5 participants)
- All the information they need to identify the case is there (5 participants)

Search for a Case

- More search criteria would be helpful
- Unclear on the scope of the search; wasn't sure if this would search all cases (2 participants)

Petition Upload

Helper Text

- Read the helper text, but it did not immediately stand out to them (5 participants)
- Would include reminder to redact PII from the IRS notice in helper text (1 participant)

Content

- Confused about what information should be included in the uploaded petition (1 participant)
- Redundancy in the petition form (paper) and what needs to be input online (1 participant)
- Feels like the entire form is redundant because all of the information is on the petition - “This is all more work for me” (1 participant)

Filing Parties / Party Type

Helper Text

- Did not expect the warning about third party filings but thinks it's helpful (1 participant)

Party Options

- Choices were confusing - wouldn't immediately think to select petitioner and spouse for deceased spouse; would select "Other" (1 participant)
- No issues finding and selecting the correct party (1 participant)
- Expected "estate" to be in the first set of options; was able to find selection after clicking on petitioner and spouse (1 participant)
- Additional parenthetical information to help guide user would be useful (1 participant)

Contact Information

- Very concerned about the phone number requirement; would not want to disclose his client's phone number (1 participant)

Case Type

Notice/No Notice Question

- Doesn't make sense to ask about a notice; some of these cases aren't initiated by an IRS notice (specifically Declaratory Judgment) (1 participant)
- Concerned that pro se petitioners would not understand the question or options (1 participant)
- Understands case type choices; there are very specific cases where the court has jurisdiction (1 participant)
- "That's everything I would expect to see" (1 participant)

Notice Date

- I've seen notices without a notice date and notices that have an incorrect date (1 participant)
- Date of notice is relevant in 99% of cases, but not all

Other Fields

Case Procedure

- Always files as Regular case; knows there are rules for filing as a Small case but never has (1 participant)

Trial Location

- Great not to have to file a separate dropdown (1 participant)
- Likes dropdown, easy to see what locations are available (1 participant)
- “I like that! That’s easy. It really streamlines the form” (1 participant)

Form Submission

Checklist Instructions

- Redaction message is helpful, but would be clear that this does not apply to the STIN (2 participants)
- Nice to have these prompts, especially for new attorneys (1 participant)
- Timeliness reminder is confusing; need to be clear of the option to mail the petition (1 participant)
- Language could be softened so it doesn't seem like a barrier (1 participant)
- Evidence reminder is redundant for people who file a lot of documents (1 participant)

Digital Signature

- Found this confusing; "Do I need to sign the petition anymore?" (1 participant)

Review / PDF Preview

- Expects and prefers to be able to review the form info, with PDF previews, before submitting (1 participant)

Findings | File Document Usability Test

File Document Fields

Document Type

- Easily navigated the dropdowns for document category and document type (1 participant)
- Did not notice the “Continue” button and was confused about what to do next (1 participant)

Inclusions

- Understood certificate of service, exhibits, objections clearly
- Confused about what was meant by Attachment; initially thought that this would be a supporting document until he saw the supporting document field
- Unsure of whether the supporting document needed to be uploaded separately, but understood once he selected “yes” and saw the upload field

File Document Fields

Filing Parties

- Participant was very confused and did not know what to select here. He would never be filing something on his own behalf, only on behalf of his client (petitioner). If he is representing two parties, generally he will always be filing on behalf of both. (1 participant)
- Very rarely would file on behalf of themselves and not their client; only for a Motion to Withdraw (1 participant)
- Expects the Filed By on docket record to display her name if she filed it; expects the petitioner's name if they filed something pro se before she entered the case (1 participant)

File Document Submission

Editing Form

- Participant did not see the “Edit” link at first (due to Zoom controls), but understood once he saw it.
(1 participant)
- Dislikes having to go back twice to edit the document type (1 participant)

Docket Record

Visual Design

- “Looks user-friendly” (1 participant)
- Likes the alternate row striping of the current docket record, helps separate the table rows (1 participant)

Mobile View

- Mobile docket view was easily navigated and understood (1 participant)
- Need ability to sort by reverse chronological order (1 participant)
- Search feature would be useful for long docket sheets (1 participant)

Content

- Did not know what “Event” meant; assumes it is for internal use (1 participant)
- Action column is very important and used to see if motions were granted; there is not always a separate docket entry so they rely on this column for that information (1 participant) Column

Case Information

Party Information

- Doesn't expect to see petitioner's phone number and email if he is representing them(1 participant)
- Likes party contact information easily available; expects to see IRS attorneys information as well (1 participant)
- No concept of Primary or Secondary contacts; if there are multiple petitioners, they all have equal weight, and there shouldn't be more than 2 petitioners for a case (1 participant)
- Want to see the Petitioner information with their representative counsel (1 participant)

Trial Information

- Likes trial information easily visible, including the judge's information (1 participant)

Findings | Deep Dive

System Usage

Account

- All participants use the U.S. Tax Court's current CMS with an individual account
- Some participants allow assistants, paralegals within their practice to log in under their account
- 1 participant must do all the system-related tasks for her 10-15 law students

Frequency

- Participants usually log into the system only when prompted by a service notification
- Frequency ranged from daily access to every few months

Recommendations

- Consider a student access role to allow law students visibility into their cases without full rights

Starting/Entering Cases

Client Relationship

- Work with clients during any stage in the tax process (administrative steps with IRS to tax court petition and beyond)
- Tax Court case is only a small portion of the entire client case lifecycle

Filing Petitions

- Mail or hand-deliver petitions to the Court
- Prefer hand-delivery because of the receipt/ confirmation they receive
- Most participants are excited to e-file petitions
- 1 participant feels that e-filing would double her workload and would prefer to file by paper

Filing Fee Payment

- All currently include a check with the paper petition
- Not using pay.gov currently, but would be open to it

Starting/Entering Cases

Entering a Case

- E-file an entry of appearance to enter a case after it's been started
- 1 participant is filing the entry of appearance by mail
- Would be helpful if they could access more case information before entering a case

Recommendations

- None

Case Management

Active Cases

- Participants had from 3 to over 15 active cases at a time
- Cases usually last a year and a half to up to three or more years

Closed Cases

- Currently, they are able to view their closed cases (back to 2013)
- Only one practitioner really uses the system to view his closed cases; others use their own records

Recommendations

- Maintain visibility into closed cases; consider capping access to closed cases after 5 years

Case Management

Case Status

- Would be useful to see case status quickly without reading the entire docket
- No visibility for cases sent to IRS Appeals office

Tracking Cases

- “You just know the rules” - they know what they need to do and when
- All participants have in-house systems to track their cases (shared calendars, whiteboards, in-house CMS, private case files, etc.)
- May be useful to show upcoming deadlines (“the more reminders the better”)

Recommendations

- Define and display an external-facing case status (may be a subset of internal statuses, or mapped to specific internal statuses)
- Display pending due dates for active cases (for example, due date for pre-trial memorandum 14 days before trial date)

Notifications

Service Notifications

- Like that they receive notification by email when a document is filed
- Most participants do not identify cases by docket number, would like to see case caption (at least)
- 1 participant using the My Service feature in the current system to more easily see recent filings (easier than searching for docket number and checking record)
- All participants would prefer to see the actual document name of the filing, and a link to the system

Service Address

- 1 participant has the need for multiple service addresses; the system only allows one address, so physical documents for her clinic are mailed to her private practice address)

Recommendations

- Consider including case caption and document title in the service notifications (if privacy laws allow)
- Allow practitioners to add multiple service addresses for different client types

Filing Documents

Selecting Document Type

- Participants felt varying levels of difficulty with selecting a document type
- 1 participant finds selecting the document type in the current system a major challenge
- Participants sometimes can't find what they need in the document list because it is not where expected or it is an obscure document
- Search or typeahead by keyword would be helpful

PDFs

- Prefer to scan and submit documents together (i.e. combine document and supporting documents)

Filing Documents

Confirmation

- 1 participant likes that the current site allows you to review the PDF you selected before submitting - “peace of mind”
- “Nice to have warnings before you submit” (1 participant found the warnings on the current site beneficial)
 - 1 participant currently prints out the confirmation screen after filing; his firm requires some saveable confirmation of submission

Sealed Documents

- File a lot of sealed documents and currently hand-deliver them to the court
- Interested in e-filing sealed documents if those documents are equally as protected from unauthorized viewers.

Filing Documents

Recommendations

- Make the typeahead search for document type available to practitioners
- Add PDF preview feature before document submission
- Test and evaluate document categorization

Dashboard

My Cases

- All expect to see the cases assigned to them
- Need ability to add a case or enter an appearance

New Filings

- Need to easily see new filings on their cases
- Nice to have deadlines / due dates pending

Case Search

- More robust query page (ability to search for cases by docket, petitioner name, attorney name)

Account Management

Dashboard

Recommendations

- Display recent/new filings for active cases on the dashboard
- Display pending due dates for cases on dashboard
- Add ability to search by petitioner name (MVP) and attorney name (post-MVP)

Device and Browser Usage

Viewing Cases on Mobile

- Use mobile device to access case docket sheet (4 participants)
- Uses iPad to view docket sheet and review filings (1 participant)
- Has tried to view cases on mobile but it “wasn’t good” (1 participant)

Filing Document on Mobile

- Would NOT file a document from a mobile device (5 participants)
- Too cumbersome and time-consuming to try to file a document from a phone (2 participants)
- “Doesn’t want to mess it up” (1 participant)

Preferred Browser

- Internet Explorer (2 participants)
- Chrome (2 participants)
- Safari (1 participant)

Other

Account Management

- Expects ability to change password, update address, etc.

Request a Call

- Nice to have way to easily contact a judge to request a conference call on a case; currently they have to call the court

Party Information

- Need to be able to easily see all party information; they have to look through entries of appearance
- Need to be able to easily see taxpayer address

Recommendations

- Consider communication options between practitioners and judges (i.e. could practitioners be able to send a system message to a judge's inbox to request a conference call)